

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE**

In re:	)	
	)	Chapter 11
Omnis Pleasants, LLC ¹	)	
	)	Case No. 26- 11169 (KBO)
	)	
Debtor.	)	Ref. Docket No. 9
	)	

**INTERIM ORDER (I) AUTHORIZING THE DEBTOR TO
CONTINUE PREPETITION HEDGING ARRANGEMENT
AND HONOR ANY OBLIGATIONS RELATED THERETO,
(II) AUTHORIZING THE DEBTOR TO ENTER INTO, AND PERFORM
UNDER, POSTPETITION HEDGING ARRANGEMENTS, (III) MODIFYING
THE AUTOMATIC STAY, AND (IV) GRANTING RELATED RELIEF**

Upon the motion (the “**Motion**”)² of the Debtor seeking entry of an order (this “**Interim Order**”) (i) authorizing the Debtor to continue performing under prepetition hedging agreements and honor obligations related thereto, (ii) authorizing the Debtor to enter into, and perform under, postpetition hedging arrangements, (iii) modifying the automatic stay, and (iv) granting related relief; and this Court having found that it has jurisdiction over this matter pursuant to 28 U.S.C. §§ 1334(b) and 157, and the Standing Order; and this Court having found that venue of the Chapter 11 Case and the Motion in this District is proper pursuant to 28 U.S.C. §§ 1408 and 1409; and this Court having found that this matter is a core proceeding pursuant to 28 U.S.C. § 157(b); and this Court having found that due and proper notice of the Motion has been given, and that no other or further notice is required or necessary under the circumstances; and this Court having determined that it may enter an interim order consistent with Article III of the United States Constitution; and

¹ The last four digits of the Debtor’s tax identification number are 2673. The location of the Debtor’s principal place of business and the Debtor’s service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

² Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to them in the Motion.

upon consideration of the First Day Declaration; and upon the record in the Chapter 11 Case and the proceedings had before this Court; and this Court having reviewed the Motion and having heard the statements in support of the relief requested therein at a hearing before this Court; and this Court having found and determined that the legal and factual bases set forth in the Motion establish just cause for the relief granted herein; and after due deliberation and sufficient cause appearing therefor,

IT IS HEREBY ORDERED THAT:

1. The Motion is **GRANTED** on an interim basis as set forth herein.
2. All objections to entry of this Interim Order, to the extent not withdrawn or settled, are overruled.
3. The final hearing (the “**Final Hearing**”) on the Motion shall be held on September 3, 2026, at 1:00 p.m. prevailing Eastern Time. Any objections or responses to entry of a final order on the Motion shall be filed with the Court, and served so as to be received by the following parties, by no later than 4:00 p.m., prevailing Eastern Time, on August 19, 2026: (i) proposed co-counsel to the Debtor, Young Conaway Stargatt & Taylor, LLP, Rodney Square, 1000 North King Street, Wilmington, Delaware 19801, Attn: Andrew L. Magaziner (amagaziner@ycst.com), Robert F. Poppiti, Jr. (rpoppiti@ycst.com), and S. Alexander Faris (afaris@ycst.com); and Herbert Smith Freehills Kramer (US) LLP, 1177 Avenue of the Americas, New York, New York 10036 (Attn: Alexander Woolverton (Alexander.Woolverton@hsfkramer.com), Brian F. Shaughnessy (Brian.Shaughnessy@HSFKramer.com), Andrew Pollack (Andrew.Pollack@HSFKramer.com), and Jared C. Borriello (Jared.Borriello@HSFKramer.com); (ii) counsel to TRAG LLC and RG Energy LLC, DLA Piper LLP (US), 1251 6th Avenue, New York, NY 10020, Attn: Kristine

Manoukian (kristine.manoukian@us.dlapiper.com); 1201 North Market Street, Suite 2100, Wilmington, Delaware 19801, Attn: R. Craig Martin (craig.martin@us.dlapiper.com) and 500 Eighth Street NW, Washington, DC 20004, Attn: Erik F. Stier (erik.stier@us.dlapiper.com); (iii) Office of the United States Trustee for the District of Delaware, Attn: Benjamin Hackman (benjamin.a.hackman@usdoj.gov), the Office of the United States Trustee for the District of Delaware, 844 King Street, Suite 2207, Lock Box 35, Wilmington, Delaware 19801; and (iv) if any statutory committee has been appointed in the Chapter 11 Case, counsel to such committee. If no objections to the entry of the Final Order are timely filed, this Court may enter the Final Order without further notice or a hearing.

4. The Debtor is authorized, but not directed, in its sole discretion, to: (a) continue performing under the Prepetition Swap Arrangement and honor, pay, or otherwise satisfy any obligations related thereto; and (b) negotiate, enter into, and perform under postpetition hedging arrangements in the ordinary course of business and consistent with industry practice.

5. The Debtor is authorized, but not directed, to (i) exercise and enforce any and all rights and remedies provided for in the Prepetition Swap Arrangement and the Postpetition Hedging Arrangements, including but not limited to rights and remedies relating to the suspension of performance thereunder, the termination, liquidation, or acceleration thereof, and (ii) monetize or otherwise dispose of any hedging arrangement.

6. If (i) there exists an outstanding postpetition balance due from the Debtor to a Prepetition Swap Counterparty and (ii) such Prepetition Swap Counterparty does not perform under the Prepetition Swap Arrangement on a postpetition basis or otherwise exercises valid and enforceable termination rights under sections 555, 556, 559, 560, and 561 of the Bankruptcy Code with respect to the Prepetition Swap Arrangement, then the Debtor may, in its sole discretion, elect

to recharacterize and apply any payments made pursuant to this Interim Order to such postpetition balance. To the extent such payments or collateral exceed the postpetition obligations then outstanding, the Prepetition Swap Counterparty shall immediately repay such excess amounts in cash to the Debtor and, as applicable, return any posted collateral. The Prepetition Swap Counterparty shall have no claim, setoff right, or recoupment right arising from such repayment or return of collateral.

7. The Debtor's banks and financial institutions shall be, and hereby are, authorized, when requested by the Debtor in its sole discretion, to process, honor, pay, and, if necessary, reissue any and all checks, including prepetition checks that the Debtor reissues postpetition, and electronic fund transfers drawn on the Debtor's bank accounts relating to those Prepetition Swap Arrangements whose payment is approved by this Interim Order, whether such checks were presented or fund transfer requests were submitted prior to or subsequent to the Petition Date, provided that sufficient funds are available in the applicable accounts to make the payments.

8. Nothing contained in the Motion or this Interim Order, and no action taken pursuant to the relief requested or granted (including any payment made in accordance with this Interim Order), is intended as or shall be construed or deemed to be: (a) an admission as to the amount of, basis for, or validity of any claim against the Debtor under the Bankruptcy Code or other applicable nonbankruptcy law; (b) a waiver of the Debtor's or any other party in interest's right to dispute any claim on any grounds; (c) a promise or requirement to pay any particular claim; (d) an implication, admission, or finding that any particular claim is an administrative expense claim, other priority claim, or otherwise of a type specified or defined in the Motion or this Interim Order; (e) a request or authorization to assume, adopt, or reject any agreement, contract, or lease pursuant to section 365 of the Bankruptcy Code; (f) an admission as to the validity, priority, enforceability,

or perfection of any lien on, security interest in, or other encumbrance on property of the Debtor's estate; (g) a waiver or limitation of any claims, causes of action, or other rights of the Debtor or any other party in interest against any person or entity under the Bankruptcy Code or any other applicable law; or (h) create any rights in favor of, or enhance the status or nature of any claim held by, any person.

9. The Debtor is authorized, but not directed, to issue postpetition checks, or to effect postpetition fund transfer requests, in replacement of any checks or fund transfer requests that are dishonored as a consequence of the Chapter 11 Case with respect to prepetition amounts owed in connection with the relief granted herein and to the extent authorized by this Interim Order.

10. To the extent necessary, the automatic stay provided in section 362 of the Bankruptcy Code is modified to permit the Prepetition Swap Counterparty and any Postpetition Hedging Counterparty to perform its obligations and exercise its rights under the applicable hedging arrangement.

11. Notwithstanding entry of this Interim Order, nothing herein shall create, nor is intended to create, any rights in favor of or enhance the status of any claim held by or right, including any contractual rights, of any party.

12. The requirements of Bankruptcy Rule 6003(b) are satisfied because the relief set forth in this Interim Order is necessary to avoid immediate and irreparable harm.

13. Notice of the Motion as provided therein shall be deemed good and sufficient notice thereof and the requirements of Bankruptcy Rule 6004(a) and the Local Rules are satisfied by such notice.

14. Notwithstanding anything herein (a) any payment made or to be made pursuant to the authority granted herein, or any authorization contained herein, shall be subject to and in

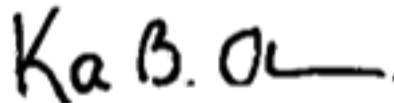
compliance with any orders authorizing the Debtor's use of prepetition collateral (in each case, the "**Adequate Protection Order**"), including any budget in connection therewith (the "**Budget**") and (b) to the extent there is any inconsistency between the Adequate Protection Order and the terms of this Interim Order, the terms of the Adequate Protection Order, including the Budget, shall control. Nothing herein shall modify, alter, or waive any terms, provisions, requirements, or restrictions of the Adequate Protection Order.

15. Notwithstanding Bankruptcy Rule 6004(h), the terms and conditions of this Interim Order shall be immediately effective and enforceable upon its entry.

16. The Debtor is authorized and empowered to take all actions necessary to implement the relief granted in this Interim Order.

17. This Court retains jurisdiction with respect to all matters arising from or related to the implementation, interpretation, or enforcement of this Interim Order.

Dated: July 29th, 2026
Wilmington, Delaware


KAREN B. OWENS
CHIEF JUDGE